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Case Number: 25STCV32154 Hearing Date: July 13, 2026 Dept: 509

Shelly Hart v. Legacy Partner's Inc., et al.

DEMURRER TO FIRST AMENDED COMPLAINT

MOVING PARTY: Defendants Legacy Partner's, Inc., David Lucas, Deanna M. O'Brien, Oscar Leon, Christina Jones, and Robyn Christy

RESPONDING PARTY(S): Plaintiff Shelly Hart

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Shelly Hart brings this habitability action against defendants Legacy Partner's, Inc.; Intersolutions, LLC; Alico Security Group, Inc.; R&J Janitorial, Inc.; Jonathan Kyle Dupree; Gerardo Martinez; David Lucas; Deanna M. O'Brien; Oscar Leon; Christina Jones; Robyn Christy; Sonia Cabrera; and Christelle Medard. Plaintiff alleges fourteen causes of action arising out of the habitability of her rental unit.

Defendants Legacy Partner's, Inc., David Lucas, Deanna M. O'Brien, Oscar Leon, Christina Jones, and Robyn Christy (Moving Defendants) now demur to the first amended complaint (FAC). Plaintiff opposed.

TENTATIVE RULING:

On this Court's own motion, this action is ordered STAYED IN ITS ENTIRETY pending final resolution of the other pending state court action(s) [discussed infra] or upon future order of this Court.

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Defendants are hereby ORDERED to file a Notice of Related Case ("NORC") in 23VECV01030 within the next seven (7) days. Defendants are to also serve a copy of this Ruling with that NORC.

A Status Review/CMC is set in this case for 10/13/27 at 8:30 a.m. The pending demurrers by the Legacy Defendants (7/13/26), and Defendant Dupree (7/22/26) shall be trailed to that date for rescheduling, as may be needed.

DISCUSSION:

Demurrer to First Amended Complaint

I. Meet and Confer

There is no declaration filed that demonstrates that the meet and confer requirement was satisfied.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

Moving Defendants first demurs to the entire FAC on the ground that there is another action pending between the same parties. (Code Civ. Pro. § 430.10, subd. (c).) “A plea in abatement pursuant to section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action. [Citation.] In determining whether the causes of action are the same for purposes of pleas in abatement, the rule is that such a plea may be maintained only where a judgment in the first action would be a complete bar to the second action. [Citation.] Where a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action.” (Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787–88.) “[T]he remedies sought in the separate actions need not be precisely the same so long as the court exercising original jurisdiction has the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings.” (Ibid.) However, “abatement is not appropriate where the first action cannot afford the relief sought in the second.” (Laws. Title Ins. Corp. v. Superior Ct., 151 Cal.App.3d 455, 459.) The proper time to raise a plea in abatement is in the original answer or by demurrer at the time of the answer. (The Rosedale Grp., LLC v. Walton (2017) 12 Cal.App.5th 936, 943.)

Here, Moving Defendants fail to identify or judicially notice the other actions they assert are currently pending. However, it appears there are at least two similar actions currently pending in Hart v LaSalle (LASC No. 23VECV01030) and Hart v. Dupree, et al. (LASC. No. 24VECV05928). (Opp. at p. 9 [“plaintiff put them on notice in Hart v LaSalle filed in 2023, which has one remaining defendant, O'BRIEN. The conditions of the property were known to LEGACY and O'Brien between 2018-2023 and put them on notice that the staff running the property were incompetent.”]; Opp at p. 7, [“Axis representing these defendants knows full well that employees can be sued as others were successfully sued in Hart v Sullivan in 2019. [19STCV40526 – settled in 2025.]”])

Despite Moving Defendants' failure to indicate which action it seeks abatement from; the closely related doctrine of exclusive concurrent jurisdiction does apply to this matter and functions much the same as a plea in abatement. The “judge-made rule” of exclusive concurrent jurisdiction “is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy and preventing vexatious litigation

and multiplicity of suits. [Citation.] The rule is 'a judicial rule of priority or preference and is not jurisdictional in the traditional sense of the word,' in that it 'does not divest a court, which otherwise had jurisdiction of an action, of jurisdiction.' [Citation.] Because it is a policy rule, application of the rule depends upon the balancing of countervailing policies." (Travelers Indem. Co. v. Lara (2022) 84 Cal.App.5th 1119.) "Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist. [Citation.] Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (Plant Insulation Co., supra, 224 Cal.App.3d at p. 788.)

Here, deciding these claims in this Court, particularly those involving the habitability of Plaintiff's unit, which appears to form the crux of all actions, presents the real risk of conflicting rulings. It is possible that a judgment in the concurrent action could have preclusive effect on this suit, as they involve the same primary rights. Thus, staying this action during the resolution of the ongoing litigation between the parties is supported by the parties' rights, interests, and judicial economy.

Moreover, it is clear to this Court that this case is "related" to Hart v LaSalle (LASC No. 23VECV01030), as defined in CRC, rule 3.300 (a). As such, Defendants are hereby ORDERED to file a NORC in that case within seven (7) days. Defendants are to also serve a copy of this Ruling with that NORC. The assigned judge (Judge Shirley Watkins) shall determine whether to relate this case with that case.

It should be further noted that to the extent that this case involves claims which arose after the filing of the 23VECV01030 case, those claims are more appropriately subject to a supplemental complaint, as opposed to a new, independent case. See, CCP § 464 (a) [The plaintiff . . . may be allowed, on motion, to make a supplemental complaint . . . alleging facts material to the case occurring after the former complaint . . ."] (*Italics added.*).

IT IS SO ORDERED.

Dated: July 13, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It may be helpful to the parties to read and consider this Court's published article entitled "To Relate or Not to Relate," a copy of which can be found on the LASC web site at "Courtroom Information for Department 509."